The State Of Karnataka vs Saadare Aalum on 3 May, 2018

IN THE COURT OF THE L ADDITIONAL CITY CIVIL &
SESSIONS JUDGE, BENGALURU

Dated this the 3rd Day of May 2018

- : PRESENT: -
SMT. SUSHEELA B.A. LL.B.
L Additional City Civil & Sessions Judge,
BENGALURU

SPECIAL C.C. No. 124/2017

COMPLAINANT The State of Karnataka,
By Madiwala Police Station,
Bengaluru
Public Prosecutor-Bangalore

/ VERSUS /

ACCUSED Saadare Aalum,
S/o. Mohammad Nazeer, 46 years,
R/at. No.88/1, Venkatesh Reddy Layout,
Garebavipalya Main Road,
Garebavipalya,
Bengaluru-68.
Sri.B.K.R.-Advocate

1	Date of commission of offence	09-12-2015
2	Date of report of occurrence	09-12-2015
3	Date of arrest of Accused	30-01-2016
	Date of release of Accused	16-02-2016
	Period undergone in custody by Accused	16 days
4	Date of commencement of evidence	10-11-2017
5	Date of closing of evidence	02-04-2018

6	Name of the complainant	Vani Kantli
7	Offences complained of	Section 370 IPC, Sec.23, 26-J.J. Act & Sec.7-CL Act
8	Opinion of the Judge	Accused is acquitted
9	Order of Sentence	As per the final order

JUDGMENT

This charge sheet filed by Police Sub-Inspector of Madiwala Police Station-Bengaluru, against accused for the offences punishable under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 7 of Child Labour (Prohibition) Act.

2. The case of the prosecution in brief, as per the prosecution papers, is stated as follows:

> The complainant-Vani Kantli-the State Co-ordinator, Bachpan Bachao Andolan, received information from public of Hongasandra area in respect of child labours engaged in business firms and on 09-12-2015 at about 01.00 p.m., the complainant along with Cw.2 to Cw.5-Naveenavathi, Anand, Ramakrishnaiah and Goverdhan-D.C.P., went to site No.11, situated at Mother Theras 's School Road, 4th Cross, 7th Main, Hongasandra, Bengaluru, where small bag stitching factory was running and found Cw.6 to Cw.10-the child labours were working there by stitching bags under the accused. On enquiry they came to know that the accused by way of human trafficking brought them from Mothihari and Shivaghad of Bihar State by influencing money and also employment to them and engaged them in the bag manufacturing work from 10 to 12 hours in a day by engaging them as bonded labours and also detained them in a room without providing basic necessities and without payment of salary to them and he has also exploited them both physically, mentally and economically. On the basis of said complaint lodged by the Cw.1-Vani Kantli, the police registered the case against the accused for the offences punishable under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 7 of Child Labour (Prohibition) Act.

3. The Investigating Officer has investigated the same and filed charge sheet against accused for the offences punishable under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 7 of Child Labour (Prohibition) Act. Thereafter, after filing the charge sheet the committal Court furnished copy of charge sheet to accused as contemplated under Section 207 of Cr.P.C. The committal Court passed an order for committing the case to the Hon'ble Principal City Civil & Session Judge-Bengaluru, since the victims are minors and the said case is exclusively triable by the Child Court and in turn the said case was made over to this Court for further proceedings.

4. After receiving the record by this Court, the summons was issued to accused. In pursuance of the said summons, the accused appeared before the Court and he was enlarged on bail. Thereafter the learned advocate for accused submitted that there is no argument before framing charge and requested to frame charge. As a result the charge was framed under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 7 of Child Labour (Prohibition) Act, the contents of charge read over and explained in Hindi by translating Kannada version to the accused. The accused pleaded not guilty and submit crime to be tried. Thereafter the case against accused set down for prosecution evidence.

5. The prosecution in order to establish the guilt of the accused has examined 5 witnesses as Pw.1 to Pw.5, got marked as many as 29 documents as Ex.P1 to Ex.P29 and closed its side evidence. In view of incriminating evidence appeared against the accused he is examined under Section 313 of Cr.P.C.,

by recording his statement. The accused denied the alleged incriminating evidence appeared against him as false. The accused complied the provision of Section 437-A of Cr.P.C. by executing personal bond and surety bond. Thereafter arguments heard from both the sides and the matter is set down for judgment.

6. Having regard to the facts, circumstances and arguments submitted by both the sides, the following points that arise for my consideration are as under:-

> 1. DgÉÆÃ¦AiÀÄÄ ªÀÄrªÁ¼À ¥ÉÇÃºÃ¸ï oÁuÁ ¸ÀgÀºÀ¢£ Ý À ºÉÆAUÀ¸A À zÀæ, 7£ÉÃ ªÉÄÊ£ï, 4£ÉÃ PÁæ¸ï, ªÀÄzÀgï vÉgÉ¸Á ¸ÀÆÌ¯ï gÀ¸A ÛÉ iÀÄºègÄÀ ªÀ ¸ÉÊmï £ÀA.11gÀ ¸Àtz Ú ÁzÀ ¨ÁåUï ºÉÆ¯ÉAiÀÄÄªÀ WÀlPÀ ElÄÖPÉÆArzÀÄÝ ¢£ÁAPÀB09-12-2015 gÀAzÀÄ ªÀÄzsÁåºÀß 1.00 UÀAmÉUÉ ¸ÀÄªÀiÁjUÉ §ZïÝÀ£ï §ZÁªÉÇÃ DAzÉÆÃ®£ÀzÀ PÉÆÃDrð£ÉÃlgï DVgÀÄªÀ ¸ÁQë-1 ªÁtô PÀApègªÀ g À ÀÄ ¸ÁQë-2 jAzÀ 5 gÀªg À ÉÆA¢UÉ ¥sÁåPÀÖjUÉ zÁ½ £ÀqÉ¹zÁUÀ ¸ÁQë-6 ¸ÁQë-10 C¥Áæ¥ÀÛ ¨Á®PÀg£ À ÀÄß ©ºÁgÀ gÁdåzÀ ªÉÆÃwºÀj ªÀÄvÀÄÛ ²ªÀUq À À f¯ÉèU½ À AzÀ §®ªÀAvÀªÁV ªÀiÁ£ÀªÀ PÀ¼Àî¸ÁUÁtôPÉ ªÀiÁr PÉÆAqÀÄ ElÄÖPÉÆAqÀÄ ¨sÁgÀwÃAiÀÄ zÀAqÀ ¸ÀA»vÉ PÀ®A 370gÀrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £ À ÀÄß J¸ÀVzÁÝgA ÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgA É iÉÄ?

> 2. DgÉÆÃ¦AiÀÄÄ ªÉÄÃ¯É ºÉÃ½zÀ ¢£ÁAPÀ, ¸ÀªÀÄAiÀÄ ºÁUÀÆ ¸À¼ Þ zÀ º À è C¥Áæ¥ÀÛ 5 ªÀÄPÀÌ¼À£ÀÄß ªÉÆÃwºÁj ªÀÄvÀÄÛ ²ªÀUq À À f¯ÉèU½ À AzÀ §®ªÀAvÀªÁV ªÀiÁ£ÀªÀ PÀ¼Àî ¸ÁUÁtôPÉ ªÀiÁrPÉÆAqÀÄ §AzÀÄ CªÀg£ À ÄÀ ß PÁ£ÀÆ£ÀÄ «gÀÄzÀª Ý ÁV ºÉa£ Ñ À CªÀ¢ zÀÄr¹PÉÆAqÀÄ ¸ÀjAiÀiÁzÀ ¸ÀªÀ® À vÀÄÛ ¤ÃqÀzÉ zÉÊ»PÀ ºÁUÀÆ ªÀiÁ£À¹PÀ »¸É ¤Ãr PÀ®A 23 ªÀÄvÀÄÛ 26 ªÀÄPÀÌ¼À £ÁåAiÀÄ C¢ü¤AiÀÄªÀÄ 2000 gÀrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £ À ÀÄß J¸ÀVzÁÝgAÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgAÉ iÉÄ?

> 3. DgÉÆÃ¦AiÀÄÄ ªÉÄÃ¯É ºÉÃ½zÀ ¢£ÁAPÀ, ¸ÀªÀÄAiÀÄ ºÁUÀÆ ¸À¼ Þ z À º À è C¥Áæ¥ÀÛ 5 ªÀÄPÀÌ¼À£ÀÄß ªÉÆÃwºÁj ªÀÄvÀÄÛ ²ªÀUq À À f¯ÉèU½À AzÀ §®ªÀAvÀªÁV ªÀiÁ£ÀªÀ PÀ¼Àî ¸ÁUÁtôPÉ ªÀiÁrPÉÆAqÀÄ §AzÀÄ CªÀg£ À ÄÀ ß PÁ£ÀÆ£ÀÄ «gÀÄzÀª Ý ÁV ºÉa£ Ñ À CªÀ¢ zÀÄr¹PÉÆAqÀÄ, ªÀÄÆ® ¸ËPÀAiÀÄðUÀ¼£ À ÀÄß ¤ÃqÀzÃÉ ªÁ¸ÀPÉÌ AiÉÆÃUÀª® À z è À ¸À¼Þ z À º À è PÀÆr ºÁQ, ¸ÀjAiÀiÁzÀ ¸ÀA§¼À ¤ÃqÀzÃÉ , ºÉÆgÀUÉ ºÉÆÃUÀ®Ä ¸ÀºÀ ©qÀzÉ fÃvÀzÁ¼ÀÄUÀ¼A À vÉ zÀÄr¹PÉÆAqÀÄ PÀ®A.7 ZÉÊ¯ïØ ¯ÉÃ§gï ¥ÉÇæ»©µÀ£ï DPïÖ CrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £ À ÀÄß J¸ÀVzÁÝgA ÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgA É iÉÄ?

> 4. AiÀiÁªÀ DzÉÃ±À?

7. My findings on the above points are as under:-

Point No.1: In the Negative.

Point No.2: In the Negative.

Point No.3: In the Negative.

Point No.4: As per the final orders for the following:

REASONS

8. Point No.1 to 3:- As these points are inter-related, hence I have taken up together for my consideration in order to avoid repetition of reasons.

9. In order to prove the alleged offences against the accused, the prosecution has examined in all 5 witnesses as Pw.1 to Pw.5, got marked 29 documents as Ex.P1 to Ex.P29. As per the prosecution case, Pw.1 is the complainant, Pw.3 and 4 are the members of raiding team and Pw.4 and Pw.5 are the police personnel and Investigation Officer. Hence, this Court shall proceed to see whether the available evidence of said witnesses are sufficient for establishing the alleged offences against accused.

10. In order to establish the alleged offences against accused, the prosecution is required to prove that The accused by influencing money and employment to Cw.6 to Cw.10-the minor children brought them by way of human trafficking from Mothihar and Shivaghad District of Bihar and engaged them in his bag manufacturing unit at site No.11, situated at Mother Theras 's School Road, 4th Cross, 7th Main, Hongasandra, Bengaluru, by extracting work for 10 to 12 hours in a day by engaging them as bonded labours. He has detained them in a room without providing basic necessities and without payment of salary to them and exploited them both physically, mentally and economically and thereby committed offences punishable under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 7 of Child Labour (Prohibition & Regulation) Act. Hence this Court shall proceed to see whether the prosecution has succeeded in establishing all the above said ingredients of the alleged offences against the accused beyond all reasonable doubt.

11. Before venturing into scan the available material evidence on record, it is necessary to mention the very definition of offences under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 7 of Child Labour (Prohibition & Regulation Act.

Section 370 of I.P.C defines that:

Trafficking of persons-[1] Whoever, for the purpose of exploitation,(a) recruits, (b)transports, (c) harbours,

(d)transfers, or (e) receives, a person or persons, by-

First -using threats, or Secondly-using force, or any other form of coercion, or Thirdly -by abduction, or Fourthly-by practicing fraud, or deception, or Fifthly -by abuse of power, or Sixthly -by inducement, including the giving or receiving of payments or benefits, in order to achieve the consent of any person having control over the person recruited, transported, harboured, transferred or received, commits the offence of trafficking.

Section 23 of J.J. Act, defines that:

Punishment for cruelty to juvenile of child:-Whoever, having the actual charge of or control over, a juvenile or the child, assaults, abandons, exposes or willfully neglects the juvenile or causes or procures him to be assaulted, abandoned, exposed or neglected in a manner likely to cause such juvenile or the child unnecessary mental or physical suffering shall be punishable with imprisonment for a term which may extend to six months, or fine, or with both.

Section 26 of J.J. Act, defines that:

Exploitation of Juvenile or child employee-whoever ostensibly procures a juvenile or the child for the purpose of any hazardous employment keeps him in bondage and withholds his earnings or uses such earning for his own purpose shall be punishable with imprisonment for a term which may extend to three years also be liable to fine.

Section 7 of The Child Labour (Prohibition and Regulation) Act, 1986 defines that:

Hours and period of work:-(1) No child shall be required or permitted to work in any establishment in excess of such number of hours as may be prescribed for such establishment or class of establishments. (2) The period of work on each day shall be so fixed that no period shall exceed three hours and that no child shall work for more than three hours before he has had an interval for rest for at least one hour.(3) The period of work of a child shall be so arranged that inclusive of his interval for rest, under sub-section(2), it shall not be spread over more than six hours, including the time spent in waiting for work on any day. (4) No child shall be permitted to work between 7 p.m., and 8 a.m. (5) No child shall be required or permitted to work overtime. (6) No child shall be required or permitted to work in any establishment on any day on which he has already been working in another establishment.

By going through the facts, circumstances and available materials both at oral and documentary, it is just and proper to consider whether the available material evidence attracts the very ingredients of above said offences in order to fix the liability against accused.

12. By going through the evidence of Pw.1-Vani Kantli- the complainant, she has deposed that she received information from the public in the month of October-2015 in respect of engaging child

labours in shops, hotels, restaurants and small industries unlawfully. On that basis, she went to Madiwala Police station, lodged complaint and requested to rescue said children. Here on perusal of her chief examination itself, she has received information from Public in the month of October- 2015 and she went to police station and lodged complaint, whereas Ex.P1 discloses she has given complaint on 09-12- 2015, that too in the month of December, after lapse of two months of receiving of information, but she has not given any reasons for the delay in lodging complaint. Non-giving of explanation is absolutely fatal to the case of the prosecution.

13. Further she has deposed that in order to rescue child labours, she accompanied with two Hoysala police and two women police. They went to Mangammana Palya main road in a guarage they rescued the child labours, brought them to police station, thereafter she has given statement. But here no such statement of complainant finds place. Ex.P1 is the complaint, her signature is Ex.P1(a). Thereafter, the Investigation Officer conducted mahazar as per Ex.P2 and her signature is Ex.P2(a), it was conducted on the very same day at about 05.00 p.m. to 06.00 p.m. before Panchayathdars-Jameer Sheik and Srinivas, but both were not stepped into witness box to depose about the process of conducting of mahazar as per Ex.P2 by the Investigation Officer.

14. The accused cross-examined this witness by eliciting some commission and omission and also elicited that she has not produced any documents to show that she is working as State Co-ordinator in Bachpan Bachao Andolan since from 2011. She has also admitted that she doesn't know who had given information to her in respect of engaging of child labourers as deposed in her chief examination. Further, she has shown her ignorance about who are all accompanied with her for raid from Madiwala Police Station and their names and details. Further she has shown her ignorance stating that she doesn't know the name of the owner of the guarage who alleged to have engaged child labour and on what date she raided the said guarage along with police personnel and on what date the Panchanama was taken place and who were persons present t the time of Panchanama as Panch witnesses. Further she has deposed that she has seen the accused only before the Court and not earlier to that. If the above said evidence is taken into consideration, this Court feels to observe that she doesn't know anything about the alleged incident and she deposed by showing her ignorance against accused. At this stage the evidence of Pw.1 is not sufficient to believe the alleged offences against accused beyond all reasonable doubt.

15. By going through the evidence of Pw.2- Ramakrishnaiah-P.S.I., he has deposed that on 22-07-2015 he was working in Hoysala as a day duty, at that time he was A.S.I. On that day a woman from Child Labour Office came and told him that some child labours were engaged in vegetable vending business, Mutton and Biriyani shops and requested him to accompany her. Accordingly along with Hoysala driver and himself went in Hoysala vehicle to a Biryani shop situated at Mangammana Palya, rescued two child labours and brought them to police station in Hoysala vehicle. Thereafter they raided one Slipper shop and rescued him and brought to station. Thereafter they rescued two child labours in an iron shop, one boy at a Tea shop and totally he has rescued six children on that day, brought them to Madiwala Police station and produced them before S.H.O. According to him he has brought six child labours along with respective shop owners and accused is one of the owners of the shop who committed the alleged offences. Here it is relevant to note that as per the evidence of complainant only one guarage was raided and rescued two children, whereas the

evidence of this witness is that on 22-07- 2015 the raid was taken place, six children rescued and brought them to police station along with respective shop owners. If the above said evidence and facts and circumstances is taken into consideration, in the chief examination itself he has deposed contrary to the evidence with that of the evidence, this witness and the statement given by the Investigation Officer.

16. In the cross-examination the accused tested the veracity of evidence of this witness by eliciting some commission and omission and he has shown ignorance of the name of the lady who accompanied at the time of raid and he has shown his ignorance about the name of the owners of the shops who alleged to have engaged six child labours in their respective shops. If this piece of evidence is also taken into consideration, there is a doubt of accompanying of this witness to the alleged raid as per the complaint lodged by Pw.1 by this witness. Through this witness also the prosecution fails to establish the alleged offence against accused beyond all reasonable doubt.

17. By going through the evidence of Pw.3-Goverdhan- police personnel in V.V.I.P. Security, earlier he was the driver of Hoysala, he has also deposed that he was driver of Hoysala-186 and he was on the day duty. On 22-07-2015 one lady came and showed a I.D. Card stating that she has come from Bachpan Bachao Andolan and requested him to accompany her in rescuing some child labours who were engaged in work. Thereafter A.S.I. and said lady accompanying him in Hoysala raided shops and rescued six children. Thereafter they brought six children along with respective shop owners in Hoysala and produced them before SHO. He has shown his ignorance about the names of the children and the owners who engaged them in work. He has given statement before the Investigation Officer. He has also identified the accused before the Court. Here also there is contrary evidence given to the evidence of Pw.1-the complainant. As per the charge sheet the incident taken place on 09-12-2015, whereas this witness deposed the incident taken place on 22-07-2015. At this stage, this Court feels to observe that in the examination in chief itself this witness deposed contrary evidence to the case of prosecution.

18. In the cross-examination the accused tested his veracity by eliciting that he is not having any supporting document to show that the accused is the owner of the shop. He has also shown his ignorance about the children who were brought from particular shop and he is unable to say the particulars of each chop. He has also deposed that he is unable to say the name of alleged child labours who was brought from the shop of the accused. Further he doesn't know to which place the alleged child labours were belonged to. In the cross- examination also no such supporting evidence given by this witness to place the alleged offences against accused beyond all reasonable doubt.

19. By going through the evidence of Pw.4-Shivanna- A.S.I., he has deposed that on 09-12-2015 at about 03.00 p.m., he has received complaint as per Ex.P1 and his signature is Ex.P1(b), he has registered the case in Crime No.2252/2015 punishable under section 370 of IPC, Section 23 and 26 of J.J. Act and Section 7 of Child Labour (Prohibition & Regulation) Act. Thereafter he has prepared F.I.R. as per Ex.P3 and his signature is Ex.P3(a) and submitted the same to the Court and to his higher officers. His evidence remains unassailed.

20. By going through the evidence of Pw.5-N.Ramesh- Retired A.S.I., he has deposed that on 09-12-2015 he has received record from Cw.13, perused the same and continued investigation. He went to spot and drawn mahazar in the presence of Panchas as per Ex.P2 and his signature is Ex.P2(b). Thereafter he has recorded statement of Cw.6 to Cw.10-the victim boys as per Ex.P4 to Ex.P8 and obtained their LTM to the same. Thereafter on 10-12-2015 he sent the rescued children to Balakara Bala Mandir along with his requisition Ex.P9 and his signature is Ex.P9(a). He has also received the age certificates from the Superintendent of Balakara Bala Mandira of the victim boys as per Ex.P10 and Ex.P14 and he has entrusted his staff to trace out the accused. On 30-01-2016 the accused was produced before him, he has arrested him by following arrest rules and obtained his voluntary statement and thereafter produced him before Court along with remand application. He has also recorded statement of Cw.2 to Cw.5 on the same day. On 31-12-2015 he has received Ration Card, Election I.D., and Aaadhar card proof of the relevant children as per Ex.P15 to Ex.P28 and seized rental agreement as per Ex.P29. After closing of investigation, he has filed charge sheet against accused. In the cross-examination the accused tested the veracity of evidence of this witness by eliciting some commission and omission, except denial suggestion, nothing has been elicited favourable to the stand taken b y the accused herein.

21. On perusal of statement of victim boys as per Ex.P4 to Ex.P8, they have stated that they are working in a tailoring shop of the accused, who used to provide them diet four times in a day, he never used to abuse or ill-treat them and he was looking after them very well. If this piece of evidence is taken into consideration, this Court feels to observe that the accused has not committed any offence as alleged against him. Moreover the victim boys also not stepped into the witness box to depose favouring the case of the prosecution. When such being the case, question of believing the alleged evidence against accused doesn't arises. Except producing the evidence of Pw.1 and police official witness evidence, no such other independent witness evidence produced to prove the alleged offences against accused.

22. The oral and documentary evidence placed on record by the prosecution is insufficient to prove the alleged offences against the accused beyond all reasonable doubt. The defense of the accused and the facts and circumstances of the case including materials on record discussed above probablizes the defense of the accused rather than the case of the prosecution.

23. In view of aforesaid reasons, I hold that the evidence of Pw.1 to Pw.5, got marked 29 documents as Ex.P1 to Ex.P29, placed on record in respect of alleged offences, is insufficient to prove that the accused by influencing money and employment to Cw.6 to Cw.10-the minor children brought them by way of human trafficking from Mothihar and Shivaghad District of Bihar and engaged them in his bag manufacturing unit at site No.11, situated at Mother Theras 's School Road, 4th Cross, 7th Main, Hongasandra, Bengaluru, by extracting work for 10 to 12 hours in a day by engaging them as bonded labours. He has detained them in a room without providing basic necessities and without payment of salary to them and exploited them both physically, mentally and economically and thereby committed offences punishable under Section 370 of I.P.C, Section 23 and 26 of Juvenile Justice Act, Section 7 of Child Labour (Prohibition) Act., beyond all reasonable doubt. Consequently I hold Point No.1 to 3 in the "Negative".

24. Point No.4:- For the above said reasons and discussions on Point No.1 to 3, I hold that the accused is entitled for an order of acquittal. Hence, in the final result, I proceed to pass the following:

> ORDER Acting under Section 235(1) of Cr.P.C., the accused is acquitted for the offences punishable under section 370 of IPC, Section 23 and 26 of J.J. Act and Section 7 of Child Labour (Prohibition and Regulation) Act. His bail bond and surety bond stand cancelled.
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> (Dictated to the Judgment Writer, transcribed and typed by her. It is then corrected, signed and pronounced by me in open court on this the 3rd Day of May 2018.) (SUSHEELA) L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE.

ANNEXURE

LIST OF WITNESSES EXAMINED ON BEHALF OF PROSECUTION

Pw.1	Vani Kantli	Cw.1	10-11-2017
Pw.2	Ramakrishnaiah	Cw.4	08-12-2017
Pw.3	Goverdhan	Cw.5	08-12-2017
Pw.4	Shivanna	Cw.13	30-01-2018
Pw.5	N.Ramesh	Cw.14	02-04-2018

LIST OF DOCUMENTS MARKED ON BEHALF OF PROSECUTION

Ex.P 1	Complaint	Pw.1	10-11-2017
Ex.P 1a	Signature of Pw.1	Pw.1	10-11-2017
Ex.P 1b	Signature of Pw.4	Pw.4	30-01-2018
Ex.P 2	Mahazar	Pw.1	10-11-2017
Ex.P 2a	Signature of Pw.1	Pw.1	10-11-2017
Ex.P 2b	Signature of Pw.5	Pw.5	02-04-2018
Ex.P 3	FIR	Pw.4	30-01-2018
Ex.P 3a	Signature of Pw.4	Pw.4	30-01-2018
Ex.P 4 to 8	Statements of victim boys-Cw.6 to Cw.10	Pw.5	02-04-2018
Ex.P 4a to 8a	Signatures of Pw.5	Pw.5	02-04-2018
Ex.P 4b, 5b, 7b	Signatures of Cw.6, Cw.7,Cw.9	Pw.5	02-04-2018
Ex.P 6b & 8b	LTM of Cw.8, Cw.10	Pw.5	02-04-2018
Ex.P 9	Requisition	Pw.5	02-04-2018
Ex.P 9a	Signature of Pw.5	Pw.5	02-04-2018

Ex.P 10 to 14	Age determination certificates of victims	Pw.5	02-04-2018
Ex.P 10a to 14a	Signatures of Pw.5	Pw.5	02-04-2018
Ex.P 15 to 28	Copies of Ration card, Election I.D. Card and Aadhar I.D. of victims and their family	Pw.5	02-04-2018
Ex.P 15a to 28a	Signatures of Pw.5	Pw.5	02-04-2018
Ex.P 29	Copy of rental agreement of accused	Pw.5	02-04-2018
Ex.P 29a	Signature of Pw.5	Pw.5	02-04-2018

LIST OF MATERIAL OBJECTS MARKED ON BEHALF OF PROSECUTION

-NIL-

LIST OF WITNESSES EXAMINED, DOCUMENTS MARKED & MO.S MARKED ON BEHALF OF DEFENCE

-NIL-

L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE.

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